

Promotion of Access to Information Act 2 of 2000

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Constitutional foundation

Section 32 of the Constitution guarantees everyone the right of access to—

- (a) any information held by the state; and
- (b) any information that is held by another person and that is required for the exercise or protection of any rights.

Public and private bodies

PAIA applies to public bodies (organs of state) and private bodies. Requesters lodge Form 2 / Form C requests with the information officer. Grounds of refusal are listed (national security, commercial information, privacy of third parties, privileged information, etc.).

PAIA manuals

Public and private bodies must compile manuals describing their records and how to request access. The Information Regulator oversees compliance together with POPIA functions.

Relationship with POPIA

Access rights under PAIA interact with data subject access under POPIA. Where both apply, the statutes are read together.

NOTE: Educational summary for SA research demo.

— End of curated extract. Verify official text before reliance. —